

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Takeya Patterson	Team: Team # 6	CCRB Case #: 201105073	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/19/2011 7:45 PM	Location of Incident: § 87(2)(b) 50th Precinct Stationhouse	18 Mo. SOL 10/19/2012	Precinct: 50		
Date/Time CV Reported Wed, 04/20/2011 9:49 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 04/20/2011 9:49 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Matthew Mccoy	11117	947238	050 PCT
2. SGT Matthew Delaney	03691	934737	050 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Danny Medina	23615	945989	050 PCT
2. POF Helen Flavin	29679	922353	050 PCT
3. POM David Velez	26965	946365	050 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Matthew Delaney	Abuse: Sgt. Matthew Delaney questioned § 87(2)(b) at § 87(2)(b) in the Bronx.	A . Substantiated
B . SGT Matthew Delaney	Abuse: Sgt. Matthew Delaney stopped § 87(2)(b) at § 87(2)(b) in the Bronx.	B . Substantiated
C . SGT Matthew Delaney	Force: Sgt. Matthew Delaney pointed his gun at and § 87(2)(b) at § 87(2)(b) in the Bronx.	C . Unfounded
D . POM Matthew Mccoy	Force: Officer Matthew Mccoy pointed his gun at § 87(2)(b) at § 87(2)(b) in the Bronx.	D . Exonerated
E . SGT Matthew Delaney	Abuse: Sgt. Matthew Delaney damaged § 87(2)(b)'s property at § 87(2)(b) in the Bronx.	E . Exonerated
F . SGT Matthew Delaney	Force: Sgt. Matthew Delaney used a chokehold against § 87(2)(b) at § 87(2)(b) in the Bronx.	F . Unfounded
G . POM Matthew Mccoy	Abuse: Officer Matthew Mccoy searched the car in which § 87(2)(b) and § 87(2)(b) were occupants at § 87(2)(b) in the Bronx.	G . Substantiated
H . SGT Matthew Delaney	Abuse: Sgt. Matthew Delaney authorized the strip-search of § 87(2)(b) at the 50th Precinct Stationhouse.	H . Substantiated
I . SGT Matthew Delaney	Discourtesy: Sgt. Matthew Delaney spoke rudely to § 87(2)(b) at the 50th Precinct Stationhouse.	I . Unsubstantiated
J . SGT Matthew Delaney	Abuse: Sgt. Matthew Delaney did not obtain medical treatment for § 87(2)(b) at the 50th Precinct Stationhouse.	J . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
K . POM Matthew Mccoy	Abuse: Officer Matthew Mccoy did not obtain medical treatment for § 87(2)(b) at the 50th Precinct Stationhouse.	K . Unsubstantiated

Case Summary

On April 19, 2011, § 87(2)(b) contacted the Internal Affairs Bureau (IAB) via telephone and filed the following complaint on behalf of herself and her husband, § 87(2)(b) which generated log number 11-17664. The complaint was subsequently referred to the Office of Chief of Department as an arrest dispute (encl. 5b-5e). On April 20, 2011, § 87(2)(b) contacted the Civilian Complaint Review Board (CCRB) via its Call Processing System and filed the following complaint on behalf of herself and her fiancé, § 87(2)(b) (encl. 5-5a). On April 19, 2011, at approximately 7:45 p.m., § 87(2)(b) dropped § 87(2)(b) off at § 87(2)(b) and parked in the parking lot, while she waited for him. When § 87(2)(b) attempted to exit the building, Sergeant Matthew Delaney, Officer Matthew McCoy and Officer Danny Medina, all of the 50th Precinct, interacted with § 87(2)(b). The following allegations resulted:

Allegation A: Abuse of Authority: Sgt. Matthew Delaney questioned § 87(2)(b) at § 87(2)(b) in the Bronx.

Allegation B: Abuse of Authority: Sgt. Matthew Delaney stopped § 87(2)(b) at § 87(2)(b) in the Bronx.

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as **substantiated**.

Allegation C: Force: Sgt. Matthew Delaney pointed his gun at § 87(2)(b) at § 87(2)(b) in the Bronx.

§ 87(2)(g)

Therefore it is recommended that **Allegation C** be closed as **unfounded**.

Allegation D: Force: Officer Matthew McCoy pointed his gun at § 87(2)(b) at § 87(2)(b) in the Bronx.

Allegation E: Abuse of Authority: Sgt. Matthew Delaney damaged § 87(2)(b)'s property at § 87(2)(b) in the Bronx.

§ 87(2)(g)

Therefore, it is recommended that **Allegations D and E** be closed as **exonerated**.

Allegation F: Force: Sgt. Matthew Delaney used a chokehold against § 87(2)(b) at § 87(2)(b) in the Bronx.

§ 87(2)(g)

Therefore it is recommended that **Allegation F** be closed as **unfounded**.

Allegation G: Abuse of Authority: Officer McCoy searched the car in which § 87(2)(b) and § 87(2)(b) were occupants at § 87(2)(b) in the Bronx.

§ 87(2)(g)

. Therefore, it is recommended that **Allegation G** be closed as **substantiated**.

Allegation H: Abuse of Authority: Sgt. Matthew Delaney authorized the strip-search of § 87(2)(b) at the 50th Precinct Stationhouse.

§ 87(2)(g) . It is therefore recommended that **Allegation H** be closed as **substantiated**.

Allegation I: Discourtesy: Sgt. Matthew Delaney spoke rudely to § 87(2)(b) at the 50th Precinct Stationhouse.

Allegation J: Abuse of Authority: Sgt. Matthew Delaney did not obtain medical treatment for § 87(2)(b) at the 50th Precinct Stationhouse.

Allegation K: Abuse of Authority: Officer Matthew McCoy did not obtain medical treatment for § 87(2)(b) at the 50th Precinct Stationhouse.

§ 87(2)(g) . Therefore it is recommended that **Allegations I, J and K** be closed as **unsubstantiated**.

Results of Investigation

Civilian Statements

Victim: § 87(2)(b)

- § 87(2)(b) is a black male, § 87(2)(b) with black hair and black eyes. He was § 87(2)(b) during the time of incident.

CCRB Statement:

On June 14, 2011, § 87(2)(b) was interviewed at the CCRB. § 87(2)(g)

On April 19, 2011, at approximately 7:45 p.m., § 87(2)(b) was riding in the passenger seat of his fiancé, § 87(2)(b)s, Ford Explorer, while she drove with their § 87(2)(b) son, § 87(2)(b) § 87(2)(b) in the back seat. § 87(2)(b) parked the car in the parking lot of a NYCHA apartment building, § 87(2)(b) in the Bronx. § 87(2)(b) exited the car and entered the apartment building to pick up his friend § 87(2)(b). Meanwhile, § 87(2)(b) remained in the car with § 87(2)(b) and waited in the parking lot for § 87(2)(b) to return.

After visiting § 87(2)(b)s apartment for approximately thirty minutes, § 87(2)(b) attempted to leave the building, followed by § 87(2)(b). Upon exiting the elevator on the lobby floor of the building, § 87(2)(b) observed four uniformed officers, standing near a set of mailboxes in close proximity to the exit door. The investigation determined that there were three officers present, who were identified via investigation as Sgt. Matthew Delaney, Officer Danny Medina and Officer Matthew McCoy, all of the 50th Precinct. The officers had a male in custody, who was identified via investigation as § 87(2)(b).

§ 87(2)(g) stated that as he attempted to walk out the door of the building, an officer, whose description matched Officer Medina, but was identified via investigation as Sgt. Delaney § 87(2)(g), grabbed him on the shoulder and asked him why he was in the building. § 87(2)(b) stopped and told Sgt. Delaney that he was visiting § 87(2)(b) § 87(2)(b) also confirmed the visit and displayed identification to Sgt. Delaney upon his request. § 87(2)(b) continued to walk out of the building at his usual pace, to the passenger side of the Ford Explorer, which was approximately 10 feet away.

As soon as § 87(2)(b) closed the car door, he noticed an officer, whose description matched that of Officer McCoy, standing on the passenger side of the vehicle with his gun pointed at § 87(2)(b) head and Sgt. Delaney, standing at the front of the vehicle, towards the driver's side, pointing his gun towards § 87(2)(b) through the front windshield. The investigation,

however, determined based on officer testimony that Sgt. Delaney and Officer McCoy's roles were reversed-with Sgt. Delaney at the passenger side and Officer McCoy standing in front of the vehicle. The determined roles will be reflected throughout the remainder of § 87(2)(b) statement. § 87(2)(b) was unaware that the officers followed him while he walked to the vehicle, as the officers did not yell, "Stop" or any other instruction to notify § 87(2)(b) that they wanted him to stop. The key was not in the ignition of the vehicle and § 87(2)(b) did not make any movements inside of the vehicle. The front windows of the vehicle were not tinted, but the rear passenger windows had factory manufactured tints.

§ 87(2)(b) who was walking behind § 87(2)(b) stopped within two feet of the vehicle once he realized that the police were following § 87(2)(b) and remained outside of the vehicle. Officer Medina stood near the building and continued to detain § 87(2)(b)

Officer McCoy yelled, "Get out of the car," once. Out of fear, § 87(2)(b) locked the vehicle's door and exclaimed, "What did I do?" § 87(2)(b) overheard one of the officers state, "I think he has a gun." § 87(2)(b) stated that an officer, who the investigation determined to be Sgt. Delaney, used his asp to break the front passenger window of the car. The shards of glass from the window fell onto § 87(2)(b) § 87(2)(b) who was seated in a car seat on the rear passenger side. § 87(2)(b) began to "go crazy" by yelling and shouting, "Are you crazy? You busted the window over my son."

§ 87(2)(b) pushed the vehicle door open and Sgt. Delaney pulled him out of the car and choked him for approximately one minute by placing both hands on his throat. § 87(2)(b) breathing was restricted, but he managed to state, "I have a baby in the car. Get off of me." However, during a telephone conversation § 87(2)(b) stated that Sgt. Delaney choked him by placing his asp across his neck and putting him in a "sleep hold" § 87(2)(b) was placed on the ground with the assistance of Officer McCoy, who placed his hand on § 87(2)(b) back. § 87(2)(b) was then seated on the step outside of the police van.

Approximately six officers arrived in two unmarked police vehicles and several uniformed officers searched his vehicle, including the trunk. However, § 87(2)(b) could not describe which officers conducted the search. No contraband was recovered.

§ 87(2)(b) was transported to the 50th Precinct stationhouse and his handcuffs were removed. However, Sgt. Delaney instructed Officer McCoy to, "Put the handcuffs back on that asshole." The handcuffs were left on § 87(2)(b) for approximately five hours. § 87(2)(b) stated that he was strip-searched in a room to the left of the holding cell, by Officer Medina, an Asian officer, and a Hispanic officer, who were not present at the scene of the incident. However the investigation has determined that Sgt. Delaney and Officer McCoy strip-searched § 87(2)(b) § 87(2)(g). § 87(2)(b) was instructed to take off his shoes, turn his socks inside out, pull his pants down and squat two to three times.

While in the holding cell, § 87(2)(b) asked Officer McCoy for medical attention for a gash on his finger, caused by the shards of broken glass. Officer McCoy responded, "If you go to the hospital, he [Sgt. Delaney] will have to go to the hospital." Sgt. Delaney, chimed in, "If you don't have to go to the hospital, I won't have to go and I won't charge you with assaulting a police officer." § 87(2)(b) ultimately decided not go to the hospital.

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. She is a Hispanic female, § 87(2)(b) with brown hair and brown eyes.

CCRB Statement:

On June 14, 2011, § 87(2)(b) was interviewed at the CCRB. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(g)

On April 19, 2011, at approximately 7:45 p.m., § 87(2)(b) her § 87(2)(b) son, § 87(2)(b) and her fiancé, § 87(2)(b) drove her 2001 Red Denali to pick up § 87(2)(b) friend, § 87(2)(b) from § 87(2)(b) in the Bronx. § 87(2)(b) parked in the building's front parking lot and remained in the car with her son while § 87(2)(b) entered the building. The car was parked approximately 10-feet-away from the building. Approximately 10 minutes later, while § 87(2)(b) was looking back at her son, who was located in a car seat in the rear passenger side of the vehicle, § 87(2)(b) entered the passenger side of her car.

Immediately after, § 87(2)(b) observed an officer, identified via investigation as Sgt. Delaney, walk swiftly towards the passenger side of her truck and bang on the window of her truck. Another officer, identified via investigation as Officer McCoy then approached the driver's side of the vehicle with his gun pointed at § 87(2)(b) and yelled, "Freeze, don't move." § 87(2)(b) began to scream that her baby was in the car and § 87(2)(b) yelled, "What did I do?" Sgt. Delaney hit the passenger side window of the vehicle, approximately three times with his asp, until it shattered and broke. § 87(2)(b) could not recall whether Sgt. Delaney had also drawn his gun. § 87(2)(b) did not over hear any officers make any commands or requests for anyone to exit the vehicle, before breaking the window. During the incident, Officer Medina did not approach § 87(2)(b)'s car.

§ 87(2)(b) was handcuffed and seated inside a police van, which was located in front of the building. While § 87(2)(b) was inside of the police van, additional uniformed officers arrived and § 87(2)(b)'s car was searched, including the front area, back area, trunk and glove compartment. However, she was not inside of the car at the time and could not recall which officers searched her car. There was no contraband recovered.

§ 87(2)(b) was arrested and transported to the 50th Precinct stationhouse. Meanwhile, § 87(2)(b) remained in the parking lot and called an ambulance for § 87(2)(b) § 87(2)(b) § 87(2)(b) was treated at § 87(2)(b) and did not sustain any injuries. § 87(2)(b) also called the police to file a report regarding her broken car window.

Witness: § 87(2)(b)

- § 87(2)(b) did not provide a CCRB Statement or pedigree information.

CCRB Statement

On June 28, 2011, § 87(2)(b) provided a brief telephone statement. Although attempts were made to obtain a verified statement, § 87(2)(b) did not participate in the investigation. § 87(2)(g)

§ 87(2)(b) initially provided § 87(2)(b)'s last name as "§ 87(2)(b)". However, § 87(2)(b) stated that his last name is § 87(2)(b). As such, his name is noted as § 87(2)(b) throughout this report.

§ 87(2)(b) was visiting his sister who resides at § 87(2)(b) in the Bronx. However, § 87(2)(b) does not reside at the address. § 87(2)(b) arrived and remained in § 87(2)(b)'s sister's apartment for approximately an hour before leaving the building. Meanwhile, § 87(2)(b) was waiting in the parking lot and was going to drop § 87(2)(b) off at his wife's house, before going home.

Upon exiting the elevator, Sgt. Delaney, Officer McCoy and Officer Medina were standing in the lobby. Sgt. Delaney, who was identified by § 87(2)(b) by reading his name plate, asked § 87(2)(b) and § 87(2)(b) if they knew anyone who lived in the building. § 87(2)(b) responded, "Yes, my sister lives in the building. We were visiting her" and § 87(2)(b) responded, "I'm with him." Sgt. Delaney did not ask for identification. Sgt. Delaney suddenly grabbed § 87(2)(b) on the shoulder and § 87(2)(b) responded, "Why are you touching me?" Sgt. Delaney

grabbed him again with more force and § 87(2)(b) ran out of the building and into his car. § 87(2)(b) stated that Sgt. Delaney and several officers pursued § 87(2)(b). The investigation determined that Officer McCoy was the additional officer who pursued § 87(2)(b). § 87(2)(b) walked outside after the pursuit and watched the incident. Sgt. Delaney ran to § 87(2)(b) car, and broke the window with his asp. Several other unidentified officers drew and pointed their guns towards the car. Sgt. Delaney pulled § 87(2)(b) through the car window and arrested him. § 87(2)(b) did not observe Sgt. Delaney draw his gun at any time. § 87(2)(b) did not mention any force, other than pulling § 87(2)(b) through the car window, used against § 87(2)(b).

On June 28, 2011, § 87(2)(b) was contacted via telephone and scheduled a date to provide a statement at the CCRB for June 29, 2011. On June 29, 2011, § 87(2)(b) called the CCRB and rescheduled for the date of July 1, 2011. § 87(2)(b) missed that appointment without calling to cancel or reschedule. On July 6, 2011, an attempt to contact § 87(2)(b) via telephone was made, but the phone was not answered and there was no voicemail machine available to leave a message. § 87(2)(b) was called twice on July 25, 2011 and during the first call a busy signal was received and during the second call an automated person is unavailable message was received. On July 26, 2011, § 87(2)(b) was called and scheduled a date to be interviewed at his home on July 27, 2011. However, on July 27, 2011, upon arrival to § 87(2)(b)'s house, he was not home. As such, a CCRB statement was not obtained from § 87(2)(b).

Attempts to Contact Civilians

Several attempts were made to contact § 87(2)(b). Though there was no contact information provided for § 87(2)(b) via his arrest report, on September 13, 2011, a Lexis-Nexis Search provided an address for him. However, the letter mailed to that address was marked as returned to sender by the United States Postal Service. A subsequent DMV search provided an additional address for him, however a letter sent to that address was also returned to sender and an additional address where his mail was previously forwarded was attached to the envelope. A letter sent to that address was also marked as returned to sender by the United States Postal Service. As such, the CCRB could not contact § 87(2)(b).

On June 27, 2011, fieldwork was conducted to canvass for possible video footage of the incident. However, there were no cameras surveilling the building, which was confirmed by the building's management company on July 26, 2011. During fieldwork, a canvass conducted for witnesses was negative, but witness canvas letters were left throughout the building.

NYPD Statements:

Subject Officer: SERGEANT MATTHEW DELANEY

- *Sgt. Delaney was § 87(2)(b) old at the time of the incident. He is a white male, § 87(2)(b) with brown hair and brown eyes.*
- *On April 19, 2011, Sgt. Delaney worked from 5:30 p.m. to 2:27 a.m. on April 20, 2011 and was assigned to conditions. He worked with Officer McCoy and Officer Medina and was dressed in uniform.*

Memo Book

Sgt. Delaney had the following memo book entries: At 7:20 p.m., conducted a vertical at § 87(2)(b). At 7:27 p.m., one under arrest by Officer Medina. At 7:28 p.m., one male stopped in front of § 87(2)(b) male black runs after stating he doesn't live in the building. Sergeant hit ground causing lacerations to hands, tears to jacket, broken radio, male black flees into burgundy SUV with female driver. Dark tint on rear windows, states to driver, "Just go, get the fuck out of here." Refuses to unlock door. Warned by sergeant, will break

window. Window broken to remove male black who began to flail and push MOS to prevent handcuffing, stating you can't handle me. No injuries to baby in rear seat. Infant still asleep. No injuries to female driver. At 7:45 p.m., one under by Officer McCoy. (encl.10-10a)

CCRB Statement:

On October 7, 2011, Sgt. Matthew Delaney was interviewed at the CCRB. His statement is summarized below (encl. 11-11b).

After conducting a vertical check of NYCHA building § 87(2)(b) in the Bronx, Sgt. Delaney, Officer Medina and Officer McCoy handcuffed and arrested § 87(2)(b) in the lobby of the building. Shortly after, the doors of the elevator in the lobby opened and § 87(2)(b) and § 87(2)(b) walked into the lobby towards the exit of the building.

As a mere furtherance of his vertical patrols to ensure that the building was secured, Sgt. Delaney asked, "Hey gentlemen, do you guys live in the building?" § 87(2)(b) who was slightly ahead of § 87(2)(b) replied, "No I don't." Sgt. Delaney asked, "Are you visiting anyone?" § 87(2)(b) responded, "Get the fuck out of my way" and continued to walk towards the door, brushing past Sgt. Delaney, who was in his path. Sgt. Delaney called out, "Hey, wait a minute" and hastened his pace to walk side-by-side with § 87(2)(b) while still in the lobby.

Sgt. Delaney stated, "Hang on a second, what are you doing in the building?" § 87(2)(b) pressed the unlock button on the lobby door and when he stepped out of the door, Sgt. Delaney touched his shoulder and § 87(2)(b) responded, "Don't fucking touch me." As § 87(2)(b) walked down the three stairs directly outside the building, Sgt. Delaney could tell he was about to run because he hastened his pace and seemed more agitated. Thus, Sgt. Delaney grabbed § 87(2)(b) shoulder and the back of his shirt twice and during each grab, § 87(2)(b) shrugged him off.

In the midst of grabbing § 87(2)(b) and walking down the steps, Sgt. Delaney fell to the ground, causing lacerations to his hand, his jacket to rip and radio to break. Sgt. Delaney attempted to stop § 87(2)(b) because he was agitated and fled outside of the building.

§ 87(2)(b) took off running and ran into the front passenger seat of § 87(2)(b)'s car, which had highly tinted rear windows, but no tint on the front windows and was parked a few feet in front of the building. After Sgt. Delaney regained his composure (7-8 seconds later), he ran to the vehicle and attempted to open the door, which was locked. Sgt. Delaney could see § 87(2)(b) pointing and heard him shouting at § 87(2)(b) "Get the fuck out of here! Go, go, go!" Officer McCoy who had also pursued § 87(2)(b) stood several feet in front of the car with his gun drawn.

Sgt. Delaney instructed § 87(2)(b) to exit the vehicle approximately four times and told him that if he does not exit the vehicle, he would break the window. § 87(2)(b) did not comply and Sgt. Delaney used his asp to hit the front passenger window several times until it shattered and broke. § 87(2)(b) § 87(2)(b) was in a car seat in the backseat of the vehicle, but Sgt. Delaney did not see him due to the dark tint on the back windows. Once the window shattered, Sgt. Delaney unlocked the door and pulled § 87(2)(b) out, with the assistance of Officer McCoy.

Once § 87(2)(b) was outside of the car, § 87(2)(b) began to swing his arms wildly, but was not throwing punches. Sgt. Delaney and Officer McCoy each grabbed one of § 87(2)(b) arms and handcuffed him. They walked him to their prisoner van, which was parked, a few feet away from § 87(2)(b)'s car. When the officers attempted to place § 87(2)(b) inside of the van, he used his legs to kick off of the van. Sgt. Delaney sat § 87(2)(b) on the ground and told him to calm down. Two minutes later, Sgt. Delaney frisked § 87(2)(b) and placed him into the prisoner van. Additional force was not used to restrain § 87(2)(b). At no time did Sgt. Delaney or any other officer choke § 87(2)(b) or place their hands on his neck. Sgt. Delaney called for backup and the additional units which arrived performed crowd control. However, Sgt. Delaney could not recall specifically who arrived.

Although, Sgt. Delaney could not positively remember, he stated that he may have searched the vehicle, confined to where § 87(2)(b) was sitting, including under the seat because it was pursuant to § 87(2)(b) arrest. Sgt. Delaney stated that if § 87(2)(b) hid contraband, he would have hidden it there. However, Sgt. Delaney did not observe § 87(2)(b) attempt to conceal anything at any time. Sgt. Delaney could not recall whether he opened any consoles or compartments, but stated that he probably did. Sgt. Delaney could not recall whether anyone assisted him. No contraband was recovered at the scene. § 87(2)(b) was not inside of the vehicle during the search. Sgt. Delaney could not recall whether he asked § 87(2)(b) for permission to search the vehicle. § 87(2)(b) was not searched during the incident.

Sgt. Delaney transported § 87(2)(b) to the 50th Precinct stationhouse, where he conducted a background check which showed that § 87(2)(b) was previously arrested for narcotics related offenses. Sgt. Delaney and Officer McCoy strip-searched § 87(2)(b) in the juvenile room of the stationhouse by instructing him to remove all of his clothing. Sgt. Delaney's reasoning for the strip-search was due to § 87(2)(b) prior narcotics history and based on § 87(2)(b) aggressive behavior, flight and resistance. Sgt. Delaney stated that he suspected that there may have been contraband which was not recovered. Upon being prompted by his SBA representative, Sgt. Delaney added that it is not uncommon for people in the Bronx to secrete contraband and that § 87(2)(b) was in a drug prone location. Sgt. Delaney did not observe § 87(2)(b) to be in possession of narcotics or have any unordinary interactions with anyone. However, § 87(2)(b) behavior towards § 87(2)(b) and willingness to place his child's life in danger seemed odd to Sgt. Delaney and he believed that he may have missed something, such as contraband passed to § 87(2)(b) or to § 87(2)(b). Ultimately, there was no contraband recovered.

While detained, § 87(2)(b) asked Sgt. Delaney whether Sgt. Delaney was going to go to the hospital due to the lacerations on Sgt. Delaney's hand. § 87(2)(b) mentioned a small cut on his own hand as well, but stated to Sgt. Delaney, "If you're not going to go [to the hospital], I'm not going either." Sgt. Delaney responded, "Well you have the option, if you want to go." § 87(2)(b) once again refused.

Sgt. Delaney did not file any paperwork in regards to his own injuries or obtain medical treatment. Sgt. Delaney was unsure if any AIDED reports were completed. During the incident, Officer Medina did not assist in apprehending § 87(2)(b) as he was monitoring § 87(2)(b). Sgt. Delaney was not sure where § 87(2)(b) was during the incident. At no time did Sgt. Delaney use profanity towards § 87(2)(b) or § 87(2)(b) nor did he overhear any other officer do so.

Subject Officer: OFFICER MATTHEW MCCOY

- *Officer McCoy was § 87(2)(b) old at the time of the incident. He is a white male, § 87(2)(b) with brown hair and black eyes.*
- *On April 19, 2011, Officer McCoy worked from 5:30 p.m. to 2:05 a.m. on April 20, 2011. He was assigned to conditions with Officer Medina and Sgt. Delaney.*

Memo Book:

Officer McCoy had the following memo book entries: At 7:20 p.m., performed a vertical patrol of § 87(2)(b). At 7:27 p.m., one male arrested by Officer Medina. At 7:28 p.m., one male stopped in front of § 87(2)(b). At 7:45 p.m., § 87(2)(b) arrested by Officer McCoy for § 87(2)(b). At 8:00 p.m., at 50th Precinct for arrest processing (encl. 12-12b).

Stop, Question and Frisk Report:

Officer McCoy completed the Stop, Question and Frisk Report which indicates that § 87(2)(b) was suspected of criminal possession of a weapon. The factors which led to his stop included suspicious waistband bulge, furtive movements, flight upon stop, actions indicative of engaging in violent crimes, wearing clothes/disguises commonly used in commission of crime. § 87(2)(b) was frisked because of inappropriate attire, actions indicative of a violent crime, furtive movements, refusal to comply with the officer's directions, suspicious bulge in the waistband and other reasonable suspicion of weapons. The report also states that § 87(2)(b) was searched due to hard object and flight of suspect. Additional factors also include, time of day-day of week or season corresponding to reports of criminal activity, area has high incidents of reported offense of type under investigation, evasive, false or inconsistent response to officers directions, and changing directions at sight of officer/flight. There were no weapons or contraband recovered. Physical force was utilized, including hands on suspect, suspect on ground, pointing and drawing firearm at suspect, and handcuffing suspect. (encl. 13)

Arrest Report:

According to the Arrest Report completed by Officer McCoy, § 87(2)(b) was observed inside of a NYCHA building. Upon stop to determine if he was a resident, § 87(2)(b) became hostile and violently flailed his arms, causing Sgt. Delaney to tumble to ground. § 87(2)(b) fled into a parked vehicle, which was occupied by a female motorist and a child in the rear passenger seat. § 87(2)(b) locked the door and refused to open it. The glass of the vehicle was broken to extract § 87(2)(b) and he further violently resisted to be handcuffed. No injuries to officer or vehicle occupants. § 87(2)(b) was strip-searched at the 50th Precinct under the authority of Sgt. Delaney. § 87(2)(b) was charged § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Criminal Court Complaint and Supporting Deposition:

According to the Criminal Court Complaint § 87(2)(b) was charged § 87(2)(b)

§ 87(2)(b) According to Officer McCoy § 87(2)(b) was observed exiting the elevator beyond the lobby of the location, where there were conspicuously placed no trespassing signs stating tenants and their guest only, locked entrance door (s), and a buzzer/intercom entry system. Officer McCoy further stated that § 87(2)(b) was asked if he lived in the building and he replied, "No, I don't live here." When § 87(2)(b) was asked for identification to verify if he was a tenant or a guest of the location, he responded, "Get the fuck out of my face" and then pushed aside another police officer and ran outside of the location. Officer McCoy further stated that Sgt. Delaney attempted to grab the defendant's arm and continued to run into the front passenger seat of a parked vehicle and locked the doors. § 87(2)(b) was instructed to unlock and open the door several times but, he refused. After the front passenger seat was opened to place § 87(2)(b) under arrest, § 87(2)(b) resisted arrest by flailing his arms and twisting his body. Officer McCoy also stated that because of § 87(2)(b) actions, he was unable to perform his official duties as a NYC police officer and investigate the above matter. (encl.22I-22J)

CCRB Statement:

On October 4, 2011, Officer Matthew McCoy was interviewed at the CCRB. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

After conducting vertical patrols at § 87(2)(b) Officer McCoy, Sgt. Delaney and Officer Medina stood in the lobby with § 87(2)(b) who was arrested § 87(2)(b).

Officer McCoy observed § 87(2)(b) and § 87(2)(b) walk out of the elevator and upon noticing the officers, stopped halfway through their stride as if they were surprised to see the officers. § 87(2)(b) and § 87(2)(b) hesitated for a moment and then continued walking towards the exit door. Officer McCoy could not recall what § 87(2)(b) was wearing.

Sgt. Delaney asked both males if they lived in the building. § 87(2)(b) stated, “No, I don’t fucking live here” and continued to walk past Sgt. Delaney towards the door. Sgt. Delaney said, “Hold on, I need to see your ID then.” § 87(2)(b) responded, “Get the fuck out of my face,” pushed past Sgt. Delaney and ran outside into the parking lot. § 87(2)(b) did not have a chance to respond to Sgt. Delaney’s request due to the speed and acceleration of the interaction with § 87(2)(b). Officer McCoy did not specifically know why Sgt. Delaney stopped § 87(2)(b) and did not discuss the reason for the stop with Sgt. Delaney. However, Officer McCoy stated that based on his own observations, the reason for stopping § 87(2)(b) was because when exiting the elevator, § 87(2)(b) seemed surprised to see the officers by hesitating to walk. Officer McCoy stated that he did not observe any additional factors for stopping § 87(2)(b).

Once outside, Sgt. Delaney chased § 87(2)(b) and grabbed him on his shoulder, followed by Officer McCoy, who also chased § 87(2)(b). § 87(2)(b) shrugged his shoulder forward to break Sgt. Delaney’s hold, causing Sgt. Delaney to fall to the ground. Meanwhile, Officer Medina remained in the building and continued to secure § 87(2)(b).

§ 87(2)(b) ran into a red GMC Truck, where § 87(2)(b) was seated in the driver’s seat, with the car idling. § 87(2)(b) began to wildly flail his arms, causing Officer McCoy to lose sight of his hands several times, as they occasionally went below waist level. Officer McCoy stood 25-30 feet in front of the truck and pointed his firearm towards § 87(2)(b) general direction. Officer McCoy ordered § 87(2)(b) not to put the car in drive and instructed both parties not to move. Once up from the ground, Sgt. Delaney attempted to open the passenger side door, where § 87(2)(b) was sitting. However, the door was locked. Sgt. Delaney instructed § 87(2)(b) to open the door and exit the vehicle approximately four times. § 87(2)(b) refused to comply and instead began to scream at § 87(2)(b). Meanwhile, § 87(2)(b) remained with her hands up in the air.

Sgt. Delaney and Officer McCoy ordered § 87(2)(b) out the car twice more, before stating, “Unlock the door, step out the vehicle or I’m going to break the window.” § 87(2)(b) did not comply and Sgt. Delaney removed his asp and used it to break the front passenger side window, then unlocked the door.

Once the door was unlocked, § 87(2)(b) aggressively pushed the car door open, causing Sgt. Delaney to jump back to avoid being hit by the door. § 87(2)(b) stormed out of the car and walked towards Officer McCoy. Officer McCoy pointed his firearm at § 87(2)(b) but holstered it when Sgt. Delaney approached § 87(2)(b) from behind and grabbed him. Officer McCoy assisted Sgt. Delaney by grabbing § 87(2)(b) from the front and all three males lost their balance and fell to the ground. The officers instructed § 87(2)(b) to place his hands behind his back, but § 87(2)(b) began to violently resist by flailing and swinging his arms, and attempting to push the officers off of him. Sgt. Delaney held one arm and Officer McCoy held the other arm to handcuff him. No other officers assisted in apprehending § 87(2)(b). Officer McCoy did not place his hands on § 87(2)(b) neck, nor did he choke him at any time. He also did not observe Sgt. Delaney do so at any time. Additional physical force was not used. § 87(2)(b) was placed in a police van with § 87(2)(b).

Officer McCoy searched the vehicle that § 87(2)(b) was in and no additional officers assisted him. Officer McCoy searched the front and rear of the vehicle and every accessible area, including the glove department, ash trays and console. Officer McCoy searched the vehicle because he lost sight of § 87(2)(b) hands several times and § 87(2)(b) could have possibly concealed contraband. However, Officer McCoy did not observe § 87(2)(b) attempt to conceal anything. No contraband or weapons were found.

§ 87(2)(b) was transported to the 50th Precinct stationhouse. Under Sgt. Delaney's order, Officer McCoy and Sgt. Delaney strip-searched § 87(2)(b) in the precinct's juvenile room. Officer McCoy was unsure of whether Officer Medina also assisted in the strip-search. § 87(2)(b) was strip-searched due to § 87(2)(b) violent resistance during the incident and the suspicion that he could have been concealing something. Officer McCoy did not observe § 87(2)(b) attempt to conceal contraband or possess any contraband but, suspected § 87(2)(b) of concealing contraband due to the violent nature of his resistance, stating that under normal circumstances people do not violently resist. No contraband was found during the strip-search.

§ 87(2)(b) did not have any injuries and Officer McCoy did not recall a gash on § 87(2)(b) finger. Officer McCoy did not recall § 87(2)(b) making any request for medical attention.

Officer McCoy did not use any profanity or overhear any other officer do so.

Witness Officer: OFFICER DANNY MEDINA

- *Officer Medina was § 87(2)(b) at the time of the incident. He is a Hispanic male, who is § 87(2)(b) with black hair and brown eyes.*
- *On April 19, 2011, Officer Medina worked from 5:30 p.m. to 2:05am on April 20, 2011, and was assigned to housing officer duties. He worked with Officer McCoy and Sgt. Delaney and was dressed in uniform.*

Memo Book:

Officer Medina did not document any entries in his memo book concerning § 87(2)(b) arrest. Officer Medina had the following memo book entries: At 7:15 p.m., conducted a vertical patrol at § 87(2)(b) § 87(2)(b) was arrested. At 7:26 p.m., one under arrest for § 87(2)(b)

CCRB Statement:

On October 5, 2011, Officer Danny Medina was interviewed at the CCRB. § 87(2)(g)

After arresting § 87(2)(b) § 87(2)(b), Officer Medina, Officer McCoy and Sgt. Delaney stood in the lobby, near the entrance of the § 87(2)(b) in the Bronx. Shortly after, § 87(2)(b) and § 87(2)(b) exited the elevator and attempted to exit the building. Officer Medina did not recall whether § 87(2)(b) stopped walking or hesitated upon sight of the officers, before Sgt. Delaney asked, "Do you have a purpose in the building? Can I see your ID? Are you visiting anyone in the building?" § 87(2)(b) responded, "No, I won't give you my fucking ID and no, I wasn't visiting anybody." Sgt. Delaney responded, "Whoa, wait a minute" while sticking his arm out towards § 87(2)(b) but did not block § 87(2)(b) path towards the door. § 87(2)(b) used his right arm to slap Sgt. Delaney's right arm away and shoved Sgt. Delaney while running out of the building.

Sgt. Delaney and Officer McCoy ran after § 87(2)(b) while Officer Medina remained inside of the building and monitored § 87(2)(b). The sole reason for stopping § 87(2)(b) was because the officers were conducting tenant checks in the building. Officer Medina could not recall what § 87(2)(b) was wearing. Officer Medina could not recall whether § 87(2)(b) showed identification or stated that he lived in the building.

While still inside of the building, Officer Medina heard a loud noise and when he exited the building (about 30 seconds-1 minute later) he observed Sgt. Delaney attempting to place § 87(2)(b) in handcuffs, while § 87(2)(b) yelled and flailed his arms. Sgt. Delaney and Officer McCoy held onto § 87(2)(b) arms and did not make contact with any other part of his body.

Officer Medina placed § 87(2)(b) inside of the prisoner van, which was parked in the parking lot (which took about another 30 seconds-1 minute) and at that point, § 87(2)(b) was already handcuffed, but was still screaming and flailing.

As § 87(2)(b) was escorted to the police van, he continued to resist by using his feet to kick off of the van and yell, “You guys can’t hold me. You can’t fucking put me in the van, you motherfuckers.” Approximately four additional officers arrived and surrounded § 87(2)(b) at the van. Officer Medina could not recall the identities of the officers that arrived. § 87(2)(b) was placed on the ground, where he eventually calmed down. However, Officer Medina could not determine who placed § 87(2)(b) on the ground or what was happening while he was on the ground, as other officers were surrounding § 87(2)(b). After § 87(2)(b) became calm, he was placed in the van.

Officer Medina observed a red Suburban with tinted windows in the parking lot and the right passenger window was broken. However, he did not see what caused the window to break. Officer Medina did not observe § 87(2)(b) while he was inside of the vehicle nor did he observe any officer draw their gun. Officer Medina also did not observe Sgt. Delaney fall to the ground at any time. Officer Medina did not observe § 87(2)(b) attempt to conceal any contraband.

Officer Medina transported § 87(2)(b) and § 87(2)(b) to the stationhouse, but did not process § 87(2)(b) arrest or have any further interaction with him. Officer Medina did not recall whether § 87(2)(b) complained of pain or injuries, specifically his finger, nor did he recall whether an ambulance responded at any time. Officer Medina did not recall whether § 87(2)(b) was strip-searched. Officer Medina did not use any profanity or overhear any other officer do so.

Witness Officers: OFFICER HELEN FLAVIN AND OFFICER DAVID VELEZ

Officers Helen Flavin and David Velez, of the 50th Precinct, were also interviewed at the CCRB § 87(2)(g) because they were listed as having responded to the incident on the SPRINT. They worked as partners and were assigned to House of Worship duties. Their statements are combined and summarized below. (encl. 17-20a)

CCRB Statements:

Officer Flavin and Officer Velez did not recall any of the details regarding this incident. They were assigned to House of Worship (HOW Auto) and though listed as having responded to the incident on the SPRINT, they did not respond to the incident or location at any time. Their duties included visiting various houses of worship. At the time of the incident, they were visiting the § 87(2)(b), at § 87(2)(b), in the Bronx, which is documented in their memo books. During their tour, neither Officer Flavin nor Officer Velez responded to a radio run for assistance nor did they search any vehicles.

NYPD Documents

SPRINT Report

Sprint Report § 87(2)(b) indicates that on April 19, 2011, at 7:26 p.m., there was one arrest after a vertical patrol, under the authority of conditions sergeant. At 7:27 p.m., sector HA reported a criminal arrest. At 7:30 p.m. an unspecified sector requested no further units. At 7:45 p.m., an unspecified sector reported two arrests in total and at 7:57 p.m., sector C resumed patrol. At 8:15 p.m., a female caller stated that her husband was arrested. Her window was smashed by police officers, while her child was in the back seat. She would like EMS to check her child. IAB Officer McDangulin was notified and stated to send an unspecified sergeant to the location. At 8:22 p.m. a 50th Precinct sergeant arrived at the location. At § 87(2)(b) EMS arrived to the location. At § 87(2)(b) the sergeant reported that the patient was removed to the hospital. (encl. 21-21c)

Command Log

§ 87(2)(b) appearance was noted as normal. § 87(2)(b) was strip-searched.(encl. 25)

Medical Treatment of Prisoner Form

No Medical Treatment of Prisoner form could be located from either the 50th Precinct or Bronx Court (encl. 28-28a).

Summons/Arrest for Incident and Disposition

- **[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]**

Status of Civil Proceedings

- Neither § 87(2)(b) nor § 87(2)(b) have filed a Notice of Claim with the City of New York as of June 14, 2011 with regard to the incident. (encl. 27)

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [illegible]

Civilians CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b) (encl.3 and encl. 4)

Subject Officers CCRB History

- Sgt. Delaney has been a member of the service for eight years and there are no substantiated CCRB allegations against him (encl. 1).
- Officer McCoy has been a member of the service for four years and there are no substantiated CCRB allegations against him (encl. 2).

Conclusion

Identification of Subject Officers

- Allegation A: Sgt. Delaney acknowledged stopping § 87(2)(b) § 87(2)(g)
- Allegations B and C: § 87(2)(g)
- Allegation D: Sgt. Delaney admitted to breaking the window of § 87(2)(b)'s vehicle, § 87(2)(g)
- Allegation E: § 87(2)(b) alleged that the same officer who broke the window of § 87(2)(b)'s vehicle, placed him in a chokehold. § 87(2)(g)
- Allegations F: Officer McCoy admitted to searching § 87(2)(b)'s vehicle.
- Allegation G: Sgt. Delaney admitted to strip searching § 87(2)(b)
- Allegation H: § 87(2)(b) directly attributed the discourtesy to the sergeant involved in the incident. § 87(2)(g)
- Allegations I and J: § 87(2)(b) stated that he asked both the Sergeant and the officer he described as Officer McCoy for medical treatment. Furthermore, Sgt. Delaney admitted to speaking with § 87(2)(b) regarding his medical treatment. § 87(2)(b)

Investigative Findings and Recommendations

Allegation A: Abuse of Authority: Sgt. Matthew Delaney questioned § 87(2)(b) at § 87(2)(b) in the Bronx.

Allegation B: Abuse of Authority: Sgt. Matthew Delaney stopped § 87(2)(b) at § 87(2)(b) in the Bronx.

According to § 87(2)(b) as he and § 87(2)(b) were exiting the lobby of the building, Sgt. Delaney grabbed § 87(2)(b) shoulder and asked why he was in the building. § 87(2)(b) replied that he was visiting § 87(2)(b). § 87(2)(b) confirmed this and showed Sgt. Delaney his identification card. § 87(2)(b) continued to walk at a normal pace into § 87(2)(b)'s car in the parking lot. § 87(2)(b) stated that after Sgt. Delaney asked if he knew anyone in the building, § 87(2)(b) responded that his sister lived in the building and § 87(2)(b) told Sgt. Delaney that he was with § 87(2)(b). § 87(2)(b) stated that Sgt. Delaney grabbed § 87(2)(b) shoulder and § 87(2)(b) asked why Sgt. Delaney was touching him. Sgt. Delaney grabbed § 87(2)(b) again and § 87(2)(b) ran out of the building. Sgt. Delaney pursued him.

Officer McCoy stated that upon sight of the officers § 87(2)(b) stopped half way through his stride and appeared startled and hesitant. Sgt. Delaney asked if § 87(2)(b) and § 87(2)(b) lived in the building and § 87(2)(b) replied, "No, I don't fucking live here" and continued to walk towards the exit of the building. Sgt. Delaney told § 87(2)(b) to hold on because he needed to see § 87(2)(b) identification card. § 87(2)(b) told Sgt. Delaney to get the fuck out of his face and pushed Sgt. Delaney, before running outside building. Sgt. Delaney and Officer McCoy pursued § 87(2)(b)

Officer Medina did not recall § 87(2)(b) appearing startled or hesitant. Officer Medina stated that Sgt. Delaney asked § 87(2)(b) his purpose in the building and to provide

identification. § 87(2)(b) refused to provide his identification card and told Sgt. Delaney that he was not visiting anyone. Sgt. Delaney asked § 87(2)(b) to wait a minute and stuck his arm out, but § 87(2)(b) shoved Sgt. Delaney's arm and fled out the building.

According to Sgt. Delaney, he decided to approach § 87(2)(b) and request information because the officers were conducting a vertical patrol of the building. As § 87(2)(b) and § 87(2)(b) were exiting the building, Sgt. Delaney asked whether they lived in the building. § 87(2)(b) responded that he did not. Sgt. Delaney then asked § 87(2)(b) if he was visiting anyone. § 87(2)(b) responded, "Get the fuck out of my way" and brushed past Sgt. Delaney and walked toward the exit of the building. Sgt. Delaney followed him and asked him to wait a minute. Once § 87(2)(b) reached the doorway of the building and hit the button to unlock the door, Sgt. Delaney touched his shoulder and § 87(2)(b) replied, "Don't fucking touch me." Sgt. Delaney stated that he could tell that § 87(2)(b) was about to run and grabbed § 87(2)(b) twice. In the midst of grabbing § 87(2)(b) Sgt. Delaney fell. § 87(2)(b) fled into § 87(2)(b) vehicle inside of the parking lot and Sgt. Delaney pursued him. Sgt. Delaney stated that he stopped § 87(2)(b) because of his flight and apparent agitation.

"Whenever an individual is physically or constructively detained by virtue of a significant interruption of his liberty of movement as a result of police action, that individual has been seized within the meaning of the Fourth Amendment." People v. Cantor, 36 N.Y.2d 106 (1975), (enc.aa1-aa6). Police pursuit significantly impedes an individual's freedom of movement. People v. Holmes, 81 N.Y.2d 1056 (1993) (encl. II1-II3). § 87(2)(g)

Moreover, an officer must possess an objective credible reason to approach a citizen and request information. To stop and seize a civilian, an officer must have "reasonable suspicion that a person is committing, has committed, or is about to commit a crime" People v. DeBour, 40 N.Y.2d 210 (1976) (encl. bb1-bb3). Police may not request information from an individual solely because he is leaving a trespass affidavit building. People v. Almonte, 927 N.Y.S.2d 818 (2011) (encl. JJ1-JJ2)

According to Interim Order 23 of Patrol Guide Procedure 212-60, (encl.HH1-HH3) an officer may not stop a suspected trespasser unless the officer reasonably suspects that the person is in the building without authority.

§ 87(2)(g)
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§ 87(2)(g)
§ 87(2)(g). Therefore, it is recommended that **Allegations A and B** be closed as **substantiated**.

Allegation C: Force: Sgt. Matthew Delaney pointed his gun at § 87(2)(b) at § 87(2)(b) in the Bronx.

§ 87(2)(b) stated that an officer approached the passenger side of § 87(2)(b)'s vehicle and pointed his gun at § 87(2)(b) head. Sgt. Delaney stated that while he did, in fact, approach the passenger side of the vehicle, he did not draw or point his gun. This is corroborated by Officer McCoy, who indicated that he had drawn his firearm and Sgt. Delaney brandished his asp. § 87(2)(b) who identified Sgt. Delaney by name and stated that he did not have his gun pointed. § 87(2)(b) stated that she could

not recall whether Sgt. Delaney had his gun pointed. Officer Medina § 87(2)(g) remained inside the building and did not witness § 87(2)(b) apprehension.

§ 87(2)(g) As such, it is recommended that **Allegation C** be closed as **unfounded**.

Allegation D: Force: Officer Matthew McCoy pointed his gun at § 87(2)(b) at § 87(2)(b) in the Bronx.

It is undisputed that Officer Matthew McCoy pointed his gun towards the vehicle in which § 87(2)(b) was the driver. § 87(2)(b) fled from Sgt. Delaney and went into § 87(2)(b)'s vehicle. Officer McCoy explained that he lost sight of § 87(2)(b)'s hands several times as he wildly flailed his arms in the car and by his own admission, § 87(2)(b) locked the doors and did not comply with Sgt. Delaney's commands to exit the vehicle. Thus, Officer McCoy stood in front of the vehicle, pointed his firearm in § 87(2)(b)'s general direction and instructed § 87(2)(b) not to move or drive away.

As cited in Police Department v Gliner, OATH Index No. 955/00 (Sept.6, 2000) (citing Police Department v. Watson, OATH Index No. 1761189 August 2, 1989) "The department permits an officer broad discretion to display his firearm, whenever he feels that his life or the life of another is endangered" Police Department v. Watson, OATH Index No. 176/89 (Aug. 2, 1989) (encl. CC1-CC3).

§ 87(2)(g) As such, it is recommended that **Allegation D** be closed as **exonerated**.

Allegation E: Abuse of Authority: Sgt. Matthew Delaney damaged § 87(2)(b)'s property at § 87(2)(b) in the Bronx.

Sgt. Delaney admitted that he used his asp to break the front passenger side window of § 87(2)(b)'s car. As described above, § 87(2)(b) admittedly locked the doors and refused to comply with Sgt. Delaney's order to exit the vehicle.

According to Patrol Guide Procedure 203-11 (encl. KK1-KK2), officers are required to use only the amount of force necessary to overcome resistance to effect an arrest.

§ 87(2)(g) Therefore it is recommended that **Allegation E** be closed as **exonerated**.

Allegation F: Force: Sergeant Matthew Delaney used a chokehold against § 87(2)(b) at § 87(2)(b) in the Bronx.

§ 87(2)(b) alleged that Sgt. Delaney choked him by placing both hands around his throat, which restricted § 87(2)(b)'s breathing. However, during a telephone conversation § 87(2)(b) stated that Sgt. Delaney choked him by placing his asp across his neck and putting him in a "sleep hold". Nonetheless, § 87(2)(b) did not complain of injuries from being choked nor did he request medical attention for any injury besides the injury to his finger. Sgt. Delaney stated he did not choke § 87(2)(b) or place his hands on § 87(2)(b)'s throat. Officer McCoy also denied observing Sgt. Delaney choke § 87(2)(b). § 87(2)(b) and § 87(2)(b) did not mention any physical force being used against § 87(2)(b).

§ 87(2)(g)

As such, it is recommended that **Allegation F** be closed as **unfounded**.

Allegation G: Abuse of Authority: Officer McCoy searched the car in which § 87(2)(b) and § 87(2)(b) were occupants at § 87(2)(b) in the Bronx.

Sgt. Delaney and Officer McCoy confirmed that § 87(2)(b)'s vehicle was searched after § 87(2)(b) was frisked and placed in the prisoner van. Although, Sgt. Delaney could not distinctly remember who searched the vehicle, he stated he may have searched it himself and he would have searched the immediate reachable areas, where § 87(2)(b) was seated. However, Officer McCoy stated that he, in fact, searched the entire vehicle, including the trunk and consoles.

Sgt. Delaney stated that § 87(2)(b)'s vehicle was searched pursuant to § 87(2)(b) arrest and in case § 87(2)(b) hid any weapons. However, Sgt. Delaney stated that he did not observe § 87(2)(b) attempt to conceal anything at any time and furthermore, he did not articulate that that there were any additional factors that led him to suspect that § 87(2)(b) had a weapon. Officer McCoy stated that he searched the vehicle in its entirety because he lost sight of § 87(2)(b) hands several times and thus § 87(2)(b) could have hidden a weapon. However, Officer McCoy also did not articulate that there was any other reason for the vehicle search or that he had any additional observations that would lead him to suspect that § 87(2)(b) had a weapon.

A warrantless search of a vehicle is permitted under the automobile exception to the warrant requirement when the police have probable cause to believe the vehicle contains contraband, weapons or evidence of a crime. The police may search a vehicle pursuant to an occupants arrest when they have reason to believe that the vehicle contains evidence related to the crime for which the occupant was arrested or that a weapon may be discovered. People v. Belton, 55 N.Y.2d 49 (1981) (encl.G1-GG10)

Absent probable cause, police may perform a limited protective search based on reasonable suspicion that a weapon is located inside of the vehicle, which presents an actual and specific danger to their safety. People v. Torres, 74 N.Y. 2d 224 (1989)(encl.FF1-FF7).

"A limited protective search of the vehicle is only permitted when the officer provides articulable facts which would indicate that there is a substantial likelihood a weapon would be secreted inside". The ruling furthers "...absent probable cause, it is unlawful for a police officer to invade the interior of a stopped vehicle once the suspects have been removed and patted down without incident, as any immediate threat to the police officers' safety has consequently been eliminated." People v. Mouzon, 2011 NY Slip OP 5108OU (City. CT. Rochester 2011) (encl. DD1-DD5).

§ 87(2)(g)

§ 87(2)(g). Therefore, it is recommended that **Allegation G** be **substantiated**.

Allegation H: Abuse of Authority: Sgt. Matthew Delaney authorized the strip-search of § 87(2)(b) at the 50th Precinct Stationhouse.

It is undisputed that Sgt. Delaney supervised and conducted the strip-search of § 87(2)(b) with the assistance of Officer McCoy. Sgt. Delaney stated that § 87(2)(b) was searched because of his flight, aggressive behavior, resistance and after conducting § 87(2)(b) background check, it revealed that § 87(2)(b) had a prior narcotics arrest. Also, because § 87(2)(b) was in a drug prone area, his behavior toward § 87(2)(b) and willingness to put his child in danger, he suspected that there may have been additional contraband which was not recovered. Officer McCoy stated that § 87(2)(b) was strip searched due to the violent nature of his resistance. § 87(2)(b) [§ 86(1)(3)&(4)] § 87(2)(g)

According to Patrol Guide procedure 208-05(c)(1) (encl. EE1-EE2), a strip-search is to be utilized when an officer reasonably suspects that weapons, drugs or other evidence may be secreted on the suspect's person, which may have not been discovered during previous search methods.

§ 87(2)(g) As such, it is recommended that **Allegation G** be closed as **substantiated**.

Allegation I: Discourtesy: Sgt. Matthew Delaney spoke rudely to § 87(2)(b) at the 50th Precinct Stationhouse.

§ 87(2)(b) stated that at the 50th Precinct stationhouse, Sgt. Delaney told Officer McCoy, "Put the handcuffs back on that asshole." Sgt. Delaney denied making the comment and stated that he did not use any profanity. Officer McCoy also stated that he did not overhear Sgt. Delaney use any profanity. Officer Medina did not interact with § 87(2)(b) at the stationhouse and stated that he also did not overhear Sgt. Delaney use any profanity.

§ 87(2)(g) Therefore, it is recommended that **Allegation I** be closed as **unsubstantiated**.

Allegation J: Abuse of Authority: Sgt. Matthew Delaney did not obtain medical treatment for § 87(2)(b) at the 50th Precinct Stationhouse.

Allegation K: Abuse of Authority: Officer Matthew McCoy did not obtain medical treatment for § 87(2)(b) at the 50th Precinct Stationhouse.

§ 87(2)(b) alleged that while in the holding cell at the stationhouse, he requested medical treatment from Sgt. Delaney and Officer McCoy for an injury to his finger. § 87(2)(b) stated that both officers coerced him into not obtaining medical treatment, by stating that if § 87(2)(b) obtained medical treatment, Sgt. Delaney would also obtain treatment and § 87(2)(b) would thus be charged with assaulting an officer. After being threatened with an additional charge, § 87(2)(b) opted not to obtain medical treatment. § 87(2)(b) did not obtain medical treatment upon being released from the precinct.

Sgt. Delaney stated that § 87(2)(b) asked if he was going to obtain treatment for a laceration to his hands. But after Sgt. Delaney stated that he was not going to obtain treatment, § 87(2)(b) indicated that he would not obtain treatment either. Yet, Sgt. Delaney stated that he left the option available for § 87(2)(b) who again refused. Officer McCoy stated that he did not hear § 87(2)(b) speak about any injuries or request medical attention at any time. § 87(2)(g)

Therefore, it is recommended that **Allegations J and K** be closed as **unsubstantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date